

investigation of Plaintiff's August 9, 2022 injuries and determined that Plaintiff failed to immediately report his injury pursuant to the Employee Handbook. (UF #38.) Because this was Plaintiff's fourth infraction in an 8-month period in violation of the CBA, Kanow and Vargas determined Plaintiff should be terminated. (UF #39.) Neither Kanow nor Vargas has ever been an officer, corporate director, or managing agent for Defendant. (UF #58-59.) Accordingly, the decisionmakers did not act with fraud, oppression, or malice.

Defendant satisfied its initial burden under Code of Civil Procedure section 437c, subdivision (b)(3), shifting the burden to Plaintiff. Plaintiff failed to present evidence to rebut Defendant's evidence. Accordingly, Plaintiff failed to meet his burden in presenting a triable issue of material fact. (See Code Civ. Proc., § 437c, subd. (b)(3).)

The unopposed motion for summary judgment is granted.

A hearing re: proposed judgment is set for September 16, 2026, at 8:30 a.m. Moving party is ordered to submit to the court and serve on all parties a proposed final judgment by no later than September 1, 2026. Any objection to the proposed judgment must be submitted to the court and served on all parties by no later than September 11, 2026.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504234	HARTWELL vs DC LOGISTICS, LLC	MOTION TO BE RELIEVED AS COUNSEL FOR DC LOGISTICS, LLC

Tentative Ruling:

The motion is taken off calendar as this Court does not currently have jurisdiction to grant relief due to the arbitration stay.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2507156	COOPER vs COUNTY OF RIVERSIDE	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSE TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Tentative Ruling:

Where responses to document requests have been timely served but are deemed deficient by the requesting party (e.g., the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general), that party may

file a motion compelling further responses. (C.C.P., § 2031.310.) The motion must be served within 45 days after service of a verified response (C.C.P., § 1010.6(a)(4)) and must be accompanied by a declaration showing “a reasonable and good faith attempt” to resolve the issues informally outside of court. (C.C.P., § 2016.040, 2031.310(b)(2).) The motion to compel further responses “shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (C.C.P., § 2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) To establish “good cause,” the burden is on the moving party to show both relevance to the subject matter and specific facts justifying discovery. (*Glenfed Develop. Corp. v. Sup. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is established, the responding party has the burden to justify any objections made to document disclosure. (*Kirkland, supra*, 95 Cal.App.4th at 98.)

The court shall impose monetary sanctions against a party or counsel who unsuccessfully opposes a motion to compel, unless the court finds substantial justification or that sanctions would be unjust. (C.C.P., § 2031.310(h).)

Timeliness

Unless notice of the motion is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (C.C.P., § 2031.310(c).) Failure to comply with the discovery deadline “is only ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Plaintiff served verified responses on April 7, 2026, triggering the 45-day deadline. Defendant’s May 18, 2026 meet-and-confer letter identified only RFP Nos. 32, 39-52, 59, 60, 61, and 62 as deficient. On May 20, 2026, Plaintiff’s counsel offered a general two-week extension. After a June 10, 2026 telephonic meet-and-confer, defense counsel memorialized the discussion in a June 17 email stating that Plaintiff agreed to supplement responses “identified in our meet and confer letter” and separately addressed two categories: “medical records” (narrowed to 2015-present) and “communications with third parties” (no narrowing). The parties extended deadlines to July 8 for supplemental responses and July 15 for the motion. On July 8, 2026, Plaintiff supplemented only the requests identified in the May 18 letter. Defense counsel filed the motion on July 15, asserting the 62 requests it was challenging were discussed. Plaintiff disputes this.

The only written extension is the June 17 email which encompasses: (1) requests identified in the May 18 letter, and (2) requests falling within the “medical records” limited in time to 2015 to the present and “communications with third parties” categories. Based on the request descriptions, the 62 requests at issue in the motion can be categorized as follows:

- Group 1 (Medical Records): RFP Nos. 15, 63, 68-74, 88 (9 requests)
- Group 2 (Third-Party Communications): RFP Nos. 17-24, 37-38, 53, 64, 76-81, 83-87 (20 requests)
- Group 3 (All other Requests): RFP Nos. 1-14, 16, 25-31, 33-36, 54-58, 65-67, 75, 82, 89-92 (33 requests)

Given the written extension only addressed medical records and third-party communications, the court finds the motion is timely as to Groups 1 and 2 (29 requests). As there is no explicit written extension for the Group 3 RFPs, or even meet-and-confer discussion as to these specific requests, the motion is untimely as to Group 3 (33 requests). Accordingly, the court proceeds to the merits only as to the 29 timely requests.

Meet and Confer

The purpose of the meet-and-confer requirement under C.C.P. § 2016.040 is to "...to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order...This, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1435.)

Defendant's counsel sent a May 18 letter, participated in a June 10 telephonic conference, and exchanged emails through July 15. Plaintiff contends Defendant never identified deficiencies in the Group 1 and Group 2 requests beyond the May 18 letter. The court finds Defendant's meet-and-confer efforts adequate as to the timely requests. The June 17 email addressed the "medical records" and "communications with third parties" categories, and the parties had a telephonic meet and confer and exchanged correspondence through the filing date.

Merits

Defendant contends Plaintiff's responses contain meritless objections, fail to identify responsive documents by Bates number or category, and fail to produce documents or provide a privilege log. Plaintiff asserts she "made a diligent search and reasonable inquiry" and produced all non-privileged responsive documents.

Defendant demonstrates good cause for the 29 timely requests (Groups 1 and 2). These Group 1 requests seek: Plaintiff's medical records pertaining to her treatment, including all related documents and bills (No. 15); communications with Plaintiff's healthcare providers (No. 63); documents regarding Plaintiff's medical condition, treatment history, and any documents supporting claims regarding health issues impacting employment (Nos. 68-74); notes or records from professionals reviewing or treating Plaintiff's claimed emotional distress No. 88.

The Group 2 requests seek: all communications with current or former employees of the County and any witnesses regarding the Plaintiff's claims (Nos. 17-24); communications with the Employee Assistance Program about support services provided to the Plaintiff (Nos. 37-38); communications with the County's Human Resources department regarding the Plaintiff's complaints or requests (No. 53); communications regarding the termination or adverse employment decisions made post-employment (No. 64); communications about accommodations granted or requested due to Plaintiff's medical condition and any discussions related to her employment status (Nos. 76-81); various written communications regarding specific individuals involved in the disputes between Plaintiff and the Defendant's departments (Nos. 83-87). These requests are directly relevant to Plaintiff's contentions and Defendant's defenses. (*Williams, supra*, 3 Cal.5th at 541.)

Defendant also challenges Plaintiff's objections, specifically vague, ambiguous, overbroad, burdensome, harassing, equally available, improper method, as boilerplate and improper. These objections are overruled. The requests are reasonably particularized and directly relevant. Plaintiff's privacy objections fail because she placed her physical and emotional condition at issue. (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 38.) To the extent Plaintiff claims privilege or work-product protection, she must serve a compliant privilege log within 20 days. (C.C.P., § 2031.240.)

The motion is granted in part, denied in part. The court orders Plaintiff to serve verified, Code-compliant further responses to RFP Nos. 15, 17-24, 37-38, 53, 63-64, 68-74, 76-81, 83-88 without objections (except privilege/work product, supported by a privilege log) and produce all responsive documents within 30 days. As to all other requests deemed untimely (RFP Nos. 1-14, 16, 25-31, 33-36, 54-58, 65-67, 75, 82, 89-92), the motion is denied.

Sanctions

The court shall impose sanctions against a party or attorney who unsuccessfully opposes a motion to compel unless the court finds substantial justification or that sanctions would be unjust. (C.C.P., § 2031.310(h).) Given the split order granting the motion is in part (29 requests) and denying in part (33 requests) due to untimeliness, Plaintiff had substantial justification for opposing the motion. **Accordingly, the court denies both parties' requests for sanctions.**